

26VECV02912 26VECV02912

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26VECV02912 Hearing Date: July 31, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

TYRONE MURPHY, an individual,

Plaintiff,

vs.

THE LAW OFFICES OF KOTTLER & KOTTLER,

Defendant.

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CASE NO.: 26VECV02912

ORDER GRANTING DEFENDANT'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

I. BACKGROUND

Plaintiff Tyrone Murphy ("Plaintiff") filed this action against Defendant The Law Offices of Kottler & Kottler ("Defendant"). Plaintiff seeks \$1,000,000 and does not allege any causes of action.

Defendant, specially appearing, moves to quash service of summons.

II. PROCEDURAL HISTORY

On May 18, 2026, Plaintiff filed a Complaint. The Complaint does not allege any cause of action.

On June 17, 2026, Defendant filed the instant Motion to Quash Service.

As of July 28, 2026, no opposition has been filed.

III. LEGAL STANDARD

Code of Civil Procedure § 418.10(a)(1)[1] provides, "[a] defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion... [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her." A motion to quash must be granted if the court finds that either (1) there is no basis for exercising personal jurisdiction over the defendant or (2) service on the defendant was improper. (See *Ziller Elecs. Lab GmbH v. Superior Court* (1988) 206 Cal.App.3d 1222, 1229.)² When a defendant moves to quash service of the summons and complaint, the plaintiff has "the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service." (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.)

IV. JUDICIAL NOTICE

Judicial notice is not required of matters already in an instant case's docket. Nevertheless, the Court will grant Defendant's request. (See RJN, ¶¶ 1-2, Exs. A-B.)

V. ANALYSIS

Defendant moves to quash service of summons on grounds the Proof of Service and service are defective because Plaintiff failed to comply with the statutory requirements governing service of process by personal service, substitute service, or service by mail with a notice and acknowledgment of receipt. Defendant contends the Proof of Service fails to state all required information, including the address or name of person served, for any method of service. (See Mot. at 6:24-28, 8:24-28.) Defendant also argues Plaintiff improperly performed the service of process. (See id., at 9:23-26, citing Code of Civil Procedure § 414.10 ["A summons may be served by any person who is at least 18 years of age and not a party to the action."].)

The Motion will be granted. Effecting service on a corporation requires delivery of summons and complaint to some person on behalf of the corporation. (See Code Civ. Proc. § 416.10.) Here, the proof of service does not create a rebuttable presumption that service by personal service or mail and acknowledgment of receipt of service was proper because an unauthorized person, "The Lady at the Panorama City post office put in the mail box two [sic] be mail two [sic] Defendant", was served. (See POS filed May 29, 2026; Dill v. Berquist Const. Co., Inc. (1994) 24 Cal.App.4th 1426, 1441-1442 [no presumption of proper service where proof of service showed service on unauthorized person].) The post office employee is not an officer, general manager, or agent of Defendant who can receive service on behalf of Defendant. (See Code Civ. Proc. § 416.10.)

The proof of service is further defective with respect to service by mail and acknowledgement because it does not attach the acknowledgment of receipt of summons or confirm that Plaintiff complied with § 415.30(a), as box 5c(3) on POS-010 is unchecked. (See POS at 2; Code Civ. Proc. § 417.10(a) ["If service is made by mail pursuant to Section 415.30, proof of service shall include the acknowledgment of receipt of summons in the form provided by that section or other written acknowledgment of receipt of summons satisfactory to the court."].)

The proof of service is further defective because Plaintiff improperly served the Summons and Complaint himself. (See Code Civ. Proc. § 414.10.)

Therefore, the proof of service fails to comply with the minimum statutory requirements, and no rebuttable presumption of proper service arises to shift the burden to Defendant to present evidence establishing the invalidity of the service. As no opposition has been filed, Plaintiff fails to meet his burden to present evidence of valid service.

Thus, the Court GRANTS Defendant's Motion to Quash Service of Summons.

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VI. CONCLUSION

Based on the foregoing, the Court GRANTS Specially Appearing Defendant's Motion to Quash Service.

IT IS SO ORDERED.

DATED: July 31, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.